

NOTE: A SEPARATE PETITION MUST BE FILED FOR EACH CRIMINAL CASE AND THE CHARGE(S) MUST BE LISTED IN THIS PETITION FOR THE CHARGE(S) TO BE EXPUNGED. ADDITIONALLY, A COPY OF YOUR CURRENT EXPUNGEMENT ELIGIBILITY CERTIFICATION MUST BE ATTACHED TO THIS PETITION.

AOC-496.2 Doc. Code: PEXC
Rev. 7-16
Page 1 of 2
Commonwealth of Kentucky
Court of Justice www.courts.ky.gov
KRS 431.078; 218A.275(8);
218A.276(8); 431.079



PETITION FOR EXPUNGEMENT
(FOR MISDEMEANOR, VIOLATION, OR
TRAFFIC INFRACTION CONVICTION)

Case No. 19-M-000001
Court District Court
County Fayette
Division Criminal

COMMONWEALTH OF KENTUCKY

PLAINTIFF

VS.

María-Alejandra O'Shaughnessy

NAME

DEFENDANT

1188 Upper Coastal Crossing Road, Apt. 14B

ADDRESS

Lexington

KENTUCKY

40507

(859) 555-0142

PHONE NUMBER

Jail ID Number FAY-204981 (optional)

Defendant's Birthdate: 02/17/1988

Defendant's SSN: _____

Violation/Arrest Date: 04/10/2018

Comes now the Defendant herein, and petitions the Court, pursuant to KRS 431.078, to expunge the following misdemeanor, violation, or traffic infraction charge(s) in the above-referenced case:

CHARGE: Ct 1: Failure to illuminate headlamps

CHARGE: Ct 2: Failure to signal

CHARGE: Ct 3: Improper equipment

CHARGE: Ct 4: Failure to yield

CHARGE: Ct 5: Improper turn

CHARGE: Counts 6 onward: see attached schedule

In support of this Petition, the Defendant states as follows:

1. The Defendant was convicted of the misdemeanor(s), violation(s) or traffic infraction(s) charged above.
2. The above-stated offense(s) is/are not a sex offense(s) or an offense(s) committed against a child.
3. The Defendant has not, been convicted of a felony or misdemeanor in the five years prior to the filing of this Petition.
4. The offense(s) is/are not subject to enhancement for a second or subsequent offense or the time for such enhancement has expired.
5. No proceeding concerning a felony or misdemeanor is pending or being instituted against Defendant.
6. This petition ☒ is filed no sooner than five (5) years after completion of Defendant's sentence or five (5) years after successful completion of the Defendant's probation, whichever is later; **OR** ☐ involves Defendant's 1st conviction for possession of controlled substances voided under KRS 218A.275(8); **OR** ☐ involves a conviction for possession of marijuana or synthetic drugs or salvia voided under KRS 218A.276(8).
7. List the names and addresses of all victims of the crimes listed above and any other person(s) whom Defendant/Petitioner has reason to believe may have information relevant to the expungement:

Victims: None identified

Persons with relevant information: _____

Morgan Lee; 200 Record Avenue, Lexington, KY 40507

County Fayette
Case No. 19-M-000001

The Defendant prays that this Petition for Expungement of a Misdemeanor, Violation, or Traffic Infraction Conviction be granted and that this Court enter an Order that the following agencies expunge any records in the agencies custody regarding these charges: **LIST AGENCIES AND ADDRESSES HERE:**

Lexington Police Department; 150 E. Main Street, Lexington, KY 40507
Kentucky State Police; 1266 Louisville Road, Frankfort, KY 40601

Note: Defendant/Petitioner must sign this petition **in the presence of** a notary **or** the circuit court clerk so that the notary/clerk can notarize his/her signature.

Date: _____, _____

Defendant/Petitioner Signature

Subscribed and sworn to before me by _____
this _____ day of _____, _____.

Notary/Clerk
My commission expires: _____, _____ By: _____ D.C.

THERE IS A \$100 FEE PER CASE, PAYABLE AT THE TIME OF FILING. THE CLERK CANNOT TAKE YOUR PETITION WITHOUT PROPER PAYMENT OF THE FEE. IF AN EXPUNGEMENT ORDER IS NOT GRANTED, \$50.00 OF THIS FEE IS NOT REFUNDABLE.

NOTIFICATION OF EXPUNGEMENT HEARING

This case is set for a hearing on _____, _____, at the hour of _____ ☐ a.m. ☐ p.m. at
the _____ ☐ District ☐ Circuit Court.

Dated this _____ day of _____, _____.

Clerk
By: _____ D.C.

FOR CLERK USE ONLY

This Petition for Expungement was sent on the _____ day of _____, _____, to Defendant/Petitioner or his/her attorney; the County Attorney; all crime victim(s) identified by Defendant/Petitioner or in the court record sought to be expunged; and all other person(s) whom Defendant/Petitioner has reason to believe may have information relevant to the expungement.

Clerk
By: _____ D.C.



EXPUNGEMENT ORDER
(FOR MISDEMEANOR, VIOLATION, OR
TRAFFIC INFRACTION CONVICTION)

Case No. 19-M-000001
Court District Court
County Fayette
Division Criminal

COMMONWEALTH OF KENTUCKY

PLAINTIFF

VS.

María-Alejandra O'Shaughnessy

NAME

DEFENDANT

1188 Upper Coastal Crossing Road, Apt. 14B

ADDRESS

Lexington

KENTUCKY

40507

(859) 555-0142

PHONE NUMBER

Jail ID Number FAY-204981 (optional)

Defendant's Birthdate: 02/17/1988

Defendant's SSN: _____

Arrest Date: 04/10/2018

FINDINGS OF FACT

The Court, having held a hearing on Defendant's Petition for Expungement and being sufficiently advised, **FINDS:**

1. Defendant has moved this Court to expunge the above-styled case wherein Defendant was convicted of the following misdemeanor(s), violation(s), or traffic infraction(s):

CHARGE: Ct 1: Failure to illuminate headlamps

CHARGE: Ct 2: Failure to signal

CHARGE: Ct 3: Improper equipment

CHARGE: Ct 4: Failure to yield

CHARGE: Ct 5: Improper turn

CHARGE: Counts 6 onward: see attached schedule

2. ☐ The above-stated offense(s) is/are not a sex offense(s) or an offense(s) committed against a child;
3. ☐ Defendant has not been convicted of a felony or misdemeanor in the five (5) years prior to the filing of this Petition;
4. ☐ No proceeding concerning a felony or misdemeanor is pending or being instituted against Defendant;
5. ☐ The offense(s) is/are not subject to enhancement for a second or subsequent offense or the time for such enhancement has expired; AND
6. The petition ☐ is filed no sooner than five (5) years after completion of Defendant's sentence or five (5) years after successful completion of the defendant's probation, whichever is later; **OR** ☐ involves Defendant's 1st conviction for possession of controlled substances voided under KRS 218A.275(8); **OR** ☐ involves a conviction for possession of marijuana or synthetic drugs or salvia voided under KRS 218A.276(8).

7. Other:

THEREFORE, IT IS HEREBY ORDERED:

1. ☐ The petition is **DENIED**. (Doc Code: OEXD) **The clerk shall refund \$50.00 of the fee(s) paid for expungement.**

2. ☐ The petition is **GRANTED**. (Doc Code: OEXG)

a. The above offense(s) is/are **expunged** from the court's records. Upon entry of this order, the proceedings in the case(s) shall be deemed never to have occurred. Defendant and the Court may properly reply no record exists with respect to Defendant upon any inquiry and Defendant shall not have to disclose the fact of the record or any matter relating thereto on any application for employment, credit, or other purpose.

b. The **Kentucky State Police and other following agencies are hereby ordered to expunge** any records in their custody regarding the above-named Defendant and offense(s):

Lexington Police Department; 150 E. Main Street, Lexington, KY 40507

Kentucky State Police; 1266 Louisville Road, Frankfort, KY 40601

Date: _____, 2_____. _____ Judge

AGENCY CERTIFICATION

_____, an above-named agency ordered to expunge records in our custody, hereby certifies that ☐ the **agency has no records** in its custody relating to the Defendant/matter OR ☐ the **agency has completed the expungement** as directed by this Court.

Date: _____, 2_____. Agency Records Custodian: _____

Distribution: Original - Court File

Copies: Defendant/Attorney; Kentucky State Police 1266 Louisville Road, Frankfort, KY 40601; Named Agencies

Kentucky Expungement Certification Attachment Guide

SYNTHETIC QA EXAMPLE - DO NOT FILE

Required certification attachment

This packet is for case 19-M-000001 in Fayette County District Court. Use one petition per criminal case. Confirm the caption and every charge against the current court record and certification before signing.

The court record shows a conviction disposition dated 06/15/2018 and supports the ordinary five-year selection. The later completion date is 09/11/2021 and the five-year date is 09/11/2026.

Request the KRS 431.079 expungement eligibility certification from the Administrative Office of the Courts Records Unit using form AOC-RU-009 and the official Kentucky Court of Justice Expungement Certification Process:

<https://www.kycourts.gov/AOC/Information-and-Technology/Pages/Expungement.aspx>. Attach the certification and file within 30 days after receiving it; this packet does not generate a substitute certification.

Kentucky Filing Instructions

SYNTHETIC QA EXAMPLE - DO NOT FILE

Before filing

This packet is for case 19-M-000001 in Fayette County District Court. Use one petition per criminal case. Confirm the caption and every charge against the current court record and certification before signing.

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<https://www.kycourts.gov/AOC/Information-and-Technology/Pages/Expungement.aspx>. Attach the certification and file within 30 days after receiving it; this packet does not generate a substitute certification.

To request permission to proceed in forma pauperis, ask the filing Circuit Court Clerk or legal aid for the current motion to proceed in forma pauperis and affidavit of indigency under KRS 453.190, complete and file both, and wait for the court to decide the request before relying on that exception. The held record does not resolve whether this process waives the non-refundable \$50 certification charge; confirm that point with the clerk or counsel.

Defendant's SSN is intentionally blank. Ask the Circuit Court Clerk how to provide this private identifier securely and whether a public filing copy should be redacted. Never use a made-up number.

AOC-496.2 lists only charges that actually resulted in conviction. Any attached Supplemental Schedule of Companion Charges is incorporated into the petition and preserves same-criminal-action misdemeanor, violation, or qualifying traffic charges that were dismissed or amended away. Never describe those companion charges as convictions. Check every offense, disposition, date, case number, name, and mailing address.

Sign, file, and serve

Sign and date AOC-496.2 only in the presence of a notary or the Circuit Court Clerk. The witness completes the jurat. The software has not signed, notarized, filed, served, or certified anything.

File with the Office of the Circuit Court Clerk in Fayette County, where the original charge was filed. 150 N. Limestone, First Floor, Lexington, KY 40507. Clerk telephone: 859-246-2228. Confirm copies, delivery method, and any local requirement directly with that clerk.

The controlling record states a \$100 filing fee per criminal case and says the first \$50 is non-refundable. The held AOC-496 proposed order separately says the clerk shall refund \$50 when a petition is denied. Those sources leave the actual unsuccessful-petition refund treatment unresolved. This packet makes no refund promise; confirm current handling with the clerk or counsel before relying on any refund.

The clerk serves the county attorney, each identified victim, and each person named as having relevant information. The participant does not serve them. The clerk sets any hearing no sooner than 30 days after filing. Leave every clerk service, hearing, and certification field blank.

AOC-496 is included only because local practice was confirmed to expect a tendered proposed order. Leave every printed judicial finding and election box blank. Leave all findings, grant/denial choices, Other findings, judge/date, and agency certification for the court and record custodians.

Stop conditions and follow-up

Stop automated self-help and seek individualized legal help if you are not a United States citizen, your citizenship is unknown, the offenses came from separate incidents, a same-case companion charge is a felony, the county attorney or a victim will object, enhancement status is uncertain, the certification lists a disputed conviction, the conviction itself is being challenged, or venue is unclear.

A filed petition or tendered proposed order does not mean the record is expunged. Attend the hearing if one is set. After a grant, the order directs named agencies to expunge and certify; keep the entered order and follow up with the clerk and agencies.

Authority: KRS 431.078, KRS 431.079, KRS 453.190; AOC-496.2 and AOC-496, Rev. 7-16. Filing this packet does not guarantee a result.

Attachment to Petition

SYNTHETIC QA EXAMPLE - DO NOT FILE

Charge, victim, relevant-person, and agency schedule

Attachment to AOC-496.2 for María-Alejandra O'Shaughnessy, case 19-M-000001, Fayette County.

Charges that resulted in conviction:

Count 1: Failure to illuminate headlamps. Court-record classification: qualifying traffic infraction. Disposition: convicted on 06/15/2018. Case number: 19-M-000001.

Count 2: Failure to signal. Court-record classification: qualifying traffic infraction. Disposition: convicted on 06/15/2018. Case number: 19-M-000001.

Count 3: Improper equipment. Court-record classification: qualifying traffic infraction. Disposition: convicted on 06/15/2018. Case number: 19-M-000001.

Count 4: Failure to yield. Court-record classification: qualifying traffic infraction. Disposition: convicted on 06/15/2018. Case number: 19-M-000001.

Count 5: Improper turn. Court-record classification: qualifying traffic infraction. Disposition: convicted on 06/15/2018. Case number: 19-M-000001.

Count 6: Disregarding traffic-control device. Court-record classification: qualifying traffic infraction. Disposition: convicted on 06/15/2018. Case number: 19-M-000001.

Count 7: Failure to maintain required lighting equipment. Court-record classification: qualifying traffic infraction. Disposition: convicted on 06/15/2018. Case number: 19-M-000001.

Victims:

None identified in the supplied case facts.

Persons believed to have relevant information:

1. Morgan Lee; 200 Record Avenue, Lexington, KY 40507

Agencies whose custody may contain records:

1. Lexington Police Department; 150 E. Main Street, Lexington, KY 40507; role: arresting agency.

2. Kentucky State Police; 1266 Louisville Road, Frankfort, KY 40601; role: state records.